

Scorza: The AI Act is at risk, here are the rules needed

Intervention by Guido Scorza, member of the Authority for the protection of personal data
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The AI Act is in jeopardy. It risks receiving light regulations or even not being approved at all. Instead, strong regulation is needed, emerging from European Institutions, obviously balanced. There is no antagonism between the right to innovate, to do business, and other fundamental rights. Here are the desired outcomes.

The next forty-eight hours will be decisive, perhaps critical, for the approval – or, unfortunately, for the non-approval – of the AI Act, the European Regulation that aims to govern artificial intelligence in the various countries of the Union without replacing existing regulations – those on privacy, competition, consumer protection, and copyright – but rather complementing and integrating them.

As often happens, the last hours are the most important, the ones in which the knots come to a head, the distances between different positions appear insurmountable even if they are not, and the details, in which the famous devil hides, threaten to derail the process.

And it is precisely for this reason that the last hours are also the ones that require more steady nerves, more common sense, and more ability to prioritize the common interest over partisan and selfish ones.

AI ACT, what is at stake in Europe

And in this case, it is more important than ever because what is at stake is one of the most complex, delicate, and, above all, impactful issues on the society in which we live.

Not in that of tomorrow but, let us not forget, in that of today.

We are already inexorably late in trying to govern something that has largely already happened, but derailing the process, failing to reach an agreement, and missing the goal of approving the regulation before the end of the European legislature would nullify the efforts made so far and condemn Europe to remain without rules on artificial intelligence for years to come.

And if this were to happen, it would mean allowing technology to impose the rules, which, it is worth remembering, as Stefano Rodotà said, is itself a form of regulation and shapes the lives of people, administrations, and society as a whole more than the rules that come from Parliaments and Governments, often even overriding the latter.

AI Act, the rules do not block the European industry

In this regard, reading the reports of the final stages of the trilogue currently taking place in Brussels regarding the AI Act, there seems to be a huge misunderstanding: many suggest that there is a risk that the rules potentially approved by European Institutions could block the markets, weigh down our domestic industry to the advantage of non-European competitors, and/or hinder progress.

A position – regardless of who supports it or, perhaps better, who inspires it – completely devoid of sense and meaning.

First of all, because “blocking” markets or hindering progress are neither the objectives nor the effects of any good regulation, and it is difficult, when navigating through history, to find examples of markets suffocated by regulation.

On the contrary, rules serve to guarantee rights or freedoms.

Including the rights and freedoms of those who do business, starting with the freedom of competition without which talking about the market seems completely pointless.

And it would be a mistake to say no to serious regulation of artificial intelligence out of concern that the wrong rules might be written because it would mean choosing a methodological approach – regulation or no regulation or, which amounts to the same, self-regulation left to the market – not on a scientific basis but starting from a pathology, from certain drifts that have undeniably occurred in the past, from what has gone wrong in other regulatory processes.

But that is not enough.

The failure of AI would be very serious

In the case of AI, in fact, the risk of not intervening and thus leaving the markets to their own devices is even more serious for two reasons.

The first is that the impact of AI on society – that is, the phenomenon that should be governed by the AI Act – largely concerns fundamental rights and freedoms, with the consequence that self-regulation is not, by definition, an option to consider, if only because, in this form of regulation, civil society,

individuals, and stakeholders with rights and interests different from those of the industry directly involved in the regulation count less than they should.

The second is that, in this specific case, the market that should self-regulate is a suffocating, inelastic, oligopolistic, and non-competitive market in which, as if that were not enough, a handful of non-European companies are in control.

Leaving room for self-regulation on a series of central issues such as foundational models would therefore mean allowing a few – and indeed very few – to write and then impose their rules on many, and indeed very many, outside of any democratic dynamic.

A risk that is not only democratically but also commercially unsustainable for our Europe, already reduced to a digital colony of others.

And there is even more.

The widespread legal uncertainty regarding a series of crucial issues related to artificial intelligence – from copyright to privacy, including the identification of liability for errors attributable to algorithms – is slowing down the adoption of AI in European businesses more than, in the worst-case scenario, the regulation that could be enacted with the AI Act would do.

Strong regulation is needed

Therefore, strong regulation is needed, which must come from the European Institutions, obviously balanced and capable of demonstrating once again that there is no and cannot be any antagonism between the right to innovate – and, more generally – to conduct business and other fundamental rights, also because among fundamental rights there are no tyrannical rights and every right can and must always be limited to the minimum necessary to ensure the exercise of the other.

However, the crossroads between regulation, non-regulation, and self-regulation is not the only issue where it is to be hoped that common sense will ultimately prevail.

A lot of common sense is also needed in identifying the national institutions to which the task of ensuring compliance with European rules should be entrusted.

An AI agency under the Government: this is not acceptable

Among the many possible scenarios, there is one that should not be allowed to occur: that this task be entrusted to an agency under the Government.

Oversight of the application of the rules that will hopefully be approved in Brussels must necessarily fall to an independent Authority placed in a position to act in absolute autonomy from national Governments.

This is for a very simple reason: many of the European rules under discussion are intended to limit or guide the use of artificial intelligence by national Governments themselves.

Just think of the entire chapter on intelligent surveillance, on law enforcement, on predictive policing, on the use of algorithms in healthcare or in justice.

In all these cases, it seems evident that if a government agency were to be responsible for the application of the rules, it would find itself in a condition of systematic conflict of interest.

Then, of course, the difference is always made by people, and therefore it could happen that an agency, with the right people, might be more capable than an Authority of acting independently.

But, of course, rules are written to function regardless of the people.

It is perfectly fine, therefore, to entrust any kind of Government Agency with the task of promoting and, if necessary, regulating at a secondary level, artificial intelligence, but not the idea of an agency that is also responsible for the enforcement of the new rules, because such a choice would completely frustrate a large part of the objectives pursued with the Regulation.

Now more than ever, in this matter, a great deal of common sense and respect for rights, freedoms, and democracy is truly needed.